

24VECV04889 24VECV04889

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C07%2F10%2F2026

Source SHA-256: 29d0b67dc9725e6bc1f643a9b94f2afa1e01f979428a8dcf2df0d1cc72ff32f0

Case Number: 24VECV04889 Hearing Date: July 10, 2026 Dept: I

24VECV04889

HENRY JR. HERNANDEZ vs CITY OF LOS ANGELES, et al.

July 10, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling -- Motion for Relief As Counsel

I.

Background

On October 7, 2024, Plaintiff Henry Jr. Hernandez ("Plaintiff") filed a complaint against Defendants the City of Los Angeles (the "City"), County of Los Angeles ("County"), Eshen Yaghoubi ("Yaghoubi"), the Eshan and Jila Yaghoubi Family Trust ("Trust"), and Does 1 to 50 alleging three causes of action: (1) dangerous condition of public property; (2) general negligence; and (3) premises liability.

On June 8, 2026, Gor Arsyan, Esq. and Levin & Nalbandyan (hereinafter "Counsel") filed the instant unopposed motions to be relieved as counsel for Plaintiff.

II.

Relief As Counsel

The court may

order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Cal. Code of Civ. Proc. § 284(2).) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An

application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion)(Cal. Rules of Court Rule 3.1362(a)), MC-052 (Declaration)(CRC Rule 3.1362(c)), and MC-053 (Proposed Order)(CRC Rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (CRC Rule 3.1362(e).)

Further, the

requisite forms must be served on the client and all other parties who have appeared in the case. (CRC Rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (CRC Rule 3.1362(e).) The Court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

Counsel declares that the parties

“have come to a point of irreconcilable differences with regards to the further handling of this action.” Counsel provides all requisite forms and trial in this action is set for October 26, 2026, giving Plaintiff adequate time to find alternative counsel. Accordingly, the Court finds good cause for relief.

Based on the foregoing, Counsel's motions for relief as counsel is GRANTED effective upon filing of the proof of service of the signed Order on Plaintiff. Counsel to file a corrected proposed Order consistent with this ruling forthwith (paragraph 5 (a) must be checked, not 5 (b)).

Counsel is ordered to give notice.